

Mohammad Islam Rana v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 September 2018 · Writ-C No. 32523 of 2018 · **Writ disposed; EE to consider representation; coercive action stayed 1 month**

HEADNOTE

A writ challenging a theft recovery citation for non-service of provisional-assessment notice and denial of the clause 6.8(c) personal hearing, with an objection already pending before the Executive Engineer, was disposed by directing the Executive Engineer to consider a representation and pass orders within one month, staying coercive action on the citation for that period. The Court did not decide whether Supply Code procedure had been followed.

FACTUAL SUMMARY

On an allegation of electricity theft, a recovery citation dated 4 April 2018 was issued against the petitioners for Rs. 70,175. Counsel for the licensee submitted that issuance of a citation meant provisional and final assessments must have been completed. The petitioners contended they were never served with notice of provisional assessment, were not given the personal hearing provided by clause 6.8(c) of the Electricity Supply Code, and that an objection already filed before the Executive Engineer had remained undecided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(c)

pending objection and personal hearing on theft recovery citation

HOLDING

Where a theft recovery citation is challenged for non-service of provisional-assessment notice and denial of the clause 6.8(c) personal hearing, and an objection to the Executive Engineer remains pending, the writ may be disposed by directing the Executive Engineer to consider a representation and pass appropriate orders within a stipulated time, with a limited stay of coercive recovery; the Court does not decide whether the Supply Code procedure was followed. ¶ 1

FLAG Petitioners invoked clause 6.8(c) on an allegation of electricity theft; the Court did not decide whether clause 6.8 or clauses 8.1–8.2 governed the assessment.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER NOTICE OF PROVISIONAL ASSESSMENT WAS SERVED AND WHETHER THE CLAUSE 6.8(C) PERSONAL HEARING WAS GIVEN

The petitioners alleged non-service and denial of hearing; the licensee inferred that assessments were complete from issuance of the citation. The Court did not resolve the conflict. ¶ 1

NOT DECIDED — MERITS OF THE RS. 70,175 THEFT ASSESSMENT AND RECOVERY CITATION DATED 4 APRIL 2018

¶ 1